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CASE #	CASE NAME	HEARING NAME
CVME2606760	JAVAHERIAN VS SISSEL	MOTION FOR PRELIMINARY INJUNCTION BY HARRY JAVAHERIAN

Tentative Ruling: Grant motion. Issue a preliminary injunction enjoining Defendants, and their agents, employees, attorneys, and all persons acting in concert with them, from recording any Notice of Trustee' s Sale, conducting any trustee' s sale of the Property, and taking any further action to foreclose pursuant to the Notice of Default recorded February 10, 2026, pending adjudication of this action. The undertaking is set at \$1,000.

A wrongful foreclosure claim lies where the foreclosing party initiates a non- judicial sale on the basis of a non- existent or excused default. (*Loner v. Citibank, N.A.* (2011) 202 Cal. App. 4th 4 89, 104- 105.) Plaintiff is current on every payment under the Settlement Agreement and the Deed of Trust. (Verified Compl. ¶¶ 17- 21; Javaherian Decl. ¶¶ 5- 7.) Because no default exists, Defendants have no power to invoke the trustee' s sale provisions of the Deed of Trust. Further, the pre-Notice-of-Default email chain confirms the absence of any default. When asked on January 26, 2026 to identify any missed payment, Mr. Bleau, Sissel' s counsel, said only that Plaintiff "missed a number of payments last year." He identified no specific missed payment. He produced no payment history. He produced no calculation. He did not respond to Plaintiff' s offer of full payment of the actual sum due. (Tooke Decl. ¶¶ 7- 9 & Ex. 1.) According to Plaintiff that was not because Sissel' s counsel forgot to send the calculation. It was because no such calculation exists.

Moreover, Civil Code §2924c(b)(1) provides that upon a borrower' s written request, the beneficiary or its agent "shall furnish a written itemization of the entire amount required to be paid" to cure the default. The duty is mandatory. Plaintiff requested an itemization twice. First on January 26, 2026, when he asked Mr. Bleau to provide a calculation showing how the \$ 187, 295.12 figure was derived. (Tooke Decl.¶ 8 & Ex. 1.) Mr. Bleau did not provide one. Plaintiff then sent a formal written demand on March 12, 2026, expressly invoking Civil Code § 2924c(b)(1), by FedEx and certified mail, requiring a response by March 27, 2026. (Verified Compl. ¶¶ 28- 31 & Ex. C; Tooke Decl. ¶ 13.) Defendants did not respond to either request. A foreclosing beneficiary cannot proceed with a non-judicial sale while withholding the very information the statute exists to require it to provide. The legislative purpose of § 2924c(b)(1) is to give the borrower the information needed to evaluate whether to cure, contest, or accept the default. By stonewalling the Plaintiffs requests, Defendants have deprived Plaintiff of that statutory right while continuing toward sale notwithstanding.

According to Plaintiff, Defendants produced three different figures over the three weeks preceding the recording of the Notice of Default, none accompanied by any calculation. On January 26, 2026, Mr. Bleau told Plaintiff's counsel that Plaintiff owed \$187, 295. 12 as of January 20, 2026, " with \$ 50.15 a day in additional interest until paid." (Tooke Decl. 11 7 & Ex 1.) On February 3, 2026, Mr. Bleau told Plaintiff's counsel that "Jerry believes that he owes approximately \$200,153. 29 plus \$ 26,346.67 for missed months and interest." (Tooke Decl. ¶10, Ex. 2.) On February 10, 2026, Defendants caused the Notice of Default to be recorded claiming \$187,295.12. (Verified Comp1. ¶¶ 22- 24 & Ex. B.)

These three figures cannot be reconciled. The \$187,295.12 in the Notice of Default does not match either component of Mr. Bleau's February 3 representation. Mr. Bleau supplied no calculation for any of the three figures, and Defendants ignored Plaintiff's requests to provide one.

Civil Code section 2924(a)(1)(B) requires that the notice of default contain "[a] statement setting forth the nature of each breach actually known to the beneficiary and of his or her election to sell or cause to be sold the property to satisfy that obligation." The Notice of Default here recites only that an unspecified "balance of principal and interest which became due on 9/01/2025, along with late charges, foreclosure fees and costs any legal fees or advances that have become due" is owed. (Verified Complaint 25 & Ex. B.) There is no breakdown of principal, no breakdown of interest, no enumeration of late charges, fees, or advances. The figure of \$187,295.12 appears without explanation. A notice that obscures rather than identifies does not satisfy section 2924(a). Material non-compliance with the statutory framework governing non- judicial foreclosure renders the threatened sale wrongful. (*Miller v. Cole* (1982) 127 Ca1. App. 3d 888, 894.)

The California non- judicial foreclosure framework distinguishes two categories of figures relevant to a borrower's response to a recorded notice of default. The first is the cure amount: the past- due installments and permitted fees needed to reinstate the loan under Civil Code § 2924c(a)(1). The second is the total payoff the amount required to discharge the obligation in full, which becomes relevant only where the beneficiary has properly invoked an acceleration provision. The two categories have different mathematics and different statutory consequences.

Per Plaintiff's comprehensive discussion, the recorded Notice of Default purports to identify a cure amount. Civil Code § 2924(a)(1)(B) requires that a notice of default specify "the nature of each breach actually known to the beneficiary." Civil Code § 2924c(a)(1) then gives the borrower the right to reinstate the loan by paying the amounts in default and shown in the notice of default." The text of the Notice here tracks that statutory framework, identifying \$187,295.12 as the "balance of principal and interest which became due on 9/ 01/ 2025, along with late charges, foreclosure fees and costs any legal fees or advances that have become due." (Verified Compl. ¶ 25 & Ex. B.) That language describes arrearages (i.e., amounts past due) not a total payoff.

However, the figure cannot survive as a cure amount. Plaintiff has missed no payment. (Verified Compl. ¶¶ 17- 21; Javaherian Decl. ¶¶ 5- 7.) Even Mr. Bleau, when asked on January 26, 2026 to identify any missed payment, said only that Plaintiff "missed a number of payments last year," but did not identify one. (Tooke Decl. ¶ 8 & Ex. 1.) If Plaintiff has missed no installments, the cure amount is \$ 0. It is not \$187,295.12.

In addition, the figure cannot survive as a total payoff. Plaintiff's counsel calculated, by reference to the Settlement Agreement's payment schedule, that the actual amount owed as of February 1, 2026 was \$129,680.38 inclusive of interest, and \$124,819.79 excluding interest accruing through December 31, 2027. (Tooke Decl. ¶ 8 & Ex. 1.) Defendants have not disputed those calculations. They have not supplied an alternative calculation. The recorded figure of

\$187,295.12 exceeds the actual total balance by approximately \$57,000 to \$62,000, depending on whether unmatured interest is included. No acceleration of the Settlement

Agreement has been documented in the record before this Court, and the Deed of Trust attached as Exhibit A to the Verified Complaint contains no provision authorizing the foreclosure of unaccrued installments.

Also, as Plaintiff explains, there is no third reading. Mr. Bleau supplied the figure on January 26, 2026 in response to Plaintiff's counsel's request to confirm the "total owed" (Tooke Decl. ¶ 7 & Ex. 1), while the recorded Notice of Default presents the same figure as an amount past due (Verified Compl., ¶25 & Ex. B.) It cannot be both. The recorded figure does not correspond to any statutory category the foreclosure framework recognizes. Material non-compliance with the statutory framework governing non-judicial foreclosure, including the requirement that the cure amount be stated with sufficient specificity to permit reinstatement, renders the threatened sale wrongful. (*Anderson v. Heart Fed. Sav. & Loan Assn.* (1989) 208 Cal. App. 3d 202, 211 ("The statutory requirements must be strictly complied with, and a trustee's sale based on a statutorily deficient notice of default is invalid.")).

Finally, the February 3, 2026 email confirms that Defendants themselves understand the distinction between the two statutory categories and that the recorded figure fits neither

Mr. Bleau's email identified two separate numbers: "\$200,153.29" as what Mr. Sissel "believes that he owes" (i. e., the total balance), and "\$26,346.67 for missed months and interest" (i.e., the arrears component). (Tooke Dec1. ¶10 & Ex. 2.) Defendants' own counsel thus separately quantified the cure component and the payoff component just seven days before the Notice of Default recorded. Yet the recorded Notice claims \$187,295.12 as past due. That figure is roughly seven times the \$26,346.67 arrearage Mr. Bleau himself identified, and it does not equal the

\$200,153.29 total Mr. Bleau identified either. The recorded figure corresponds to neither category. Defendants' own counsel separately identified, in their own email, seven days before recording.

The tender rule does not bar relief. The doctrine applies to actions to set aside a completed foreclosure sale, not to actions seeking to enjoin a threatened sale before it occurs. (*Intengan v. BAC Home Loans Servicing LP* (2013) 214 Cal. App. 4th 22 1047, 1053- 1054.) Independently, a borrower need not tender an amount whose validity he disputes. (*Lona v. Citibank, N.A.* (2011) 202 Cal. App. 4th 89, 112-113. Plaintiff disputes the asserted default in its entirety, and as set forth above, has already offered the actual amount due of \$124,819.25 which Defendants ignored.

The threatened loss of a home is a prime example of irreparable harm. Civil Code § 3387 provides that real property is presumptively unique. Loss of a personal residence is conclusive evidence of irreparable harm. (Id.) A money judgment cannot make a homeowner whole for the loss of the specific parcel in which he resides. Plaintiff resides at the Property. It is his primary residence. (Javaherian Decl. ¶ 2.) If Defendants record a Notice of Trustee's Sale and conducts a sale before this case is adjudicated, Plaintiff will lose his residence on the basis of a fabricated default. The injury cannot be remedied later by money damages. The harm is by definition irreparable.

If a preliminary injunction issues, Defendants are inconvenienced only by a delay in pursuing a remedy they have not shown they are entitled to pursue at all. Their lien

remains of record. Their position in the priority of any other creditor is unaffected. They lose nothing of substance. However, if no preliminary injunction issues, Plaintiff loses his home. Defendants will conduct a sale that strips Plaintiff of title to his residence on the strength of a sum they have refused to itemize, that does not exist, and that Plaintiff offered to discharge in the correct amount before any Notice of Default was recorded. That strongly favors interim relief.

A bond serves to protect the enjoined party against losses resulting from a wrongful injunction. (CCP § 529.) Where, as here, the defendant has no plausible claim of harm from delay, a nominal bond is appropriate. (*ABBA Rubber Co. v. Seagui* (1991) 235 Cal. App. 3d 1, 22.) Plaintiff shows that he is current on his payments under the Settlement Agreement; Defendants therefore lose nothing in interim cash flow from a stay of the sale. Defendants' security interest is preserved by the recorded Deed of Trust, and their lien is not impaired by an injunction.

At the ex parte hearing, the trustee's counsel represented that no trustee's sale had been noticed and none was currently scheduled. That representation defeated the showing of immediate danger required for ex parte relief, but it does not defeat a preliminary injunction. The two forms of relief answer different questions. Ex parte relief requires immediate, irreparable danger before a noticed motion can be heard. (Cal. Rules of Court, rule 3.1202(c).) A preliminary injunction requires only that the moving party show a likelihood of success and that the balance of harms favors preserving the status quo pending trial. (CCP § 526(a)(2)(3).)

In addition, the absence of a noticed sale today does not make the threat speculative. The three-month period under Civil Code § 2924(a)(2) expired on May 10, 2026. Defendants hold a recorded Notice of Default and may record a Notice of Trustee's Sale at any time, with a sale to follow as soon as twenty days later. (Civ. Code § 2924(a)(4).) A defendant's representation that it has no present intention to act does not deprive a court of the power to enjoin threatened conduct; it remains free to resume; injunctive relief is appropriate precisely where a party retains both the ability and the incentive to carry out the threatened act. Defendants have refused every request to itemize or explain the asserted default, have not withdrawn the Notice of Default, and have given no assurance they will not record a Notice of Trustee's Sale. A preliminary injunction is the only mechanism that will hold the foreclosure in abeyance long enough for the validity of the asserted default to be adjudicated. Civil Code section 2924g(c)(1)(A) requires the trustee to postpone any sale upon the order of this Court, so the requested injunction will have direct and immediate effect.